

		Plaintiff to give notice and prepare a judgment consistent with this ruling.
12	Schneider-Kidan vs. Estate of Leonard Tierney	TENTATIVE RULING: Plaintiff Tracy Lynn Schneider-Kidan’s motion to reconsider or vacate/set aside the March 18, 2026, order granting Defendant Richard Chipman’s motion to quash service of summons is DENIED without prejudice as to section 473(b) relief only. On March 18, 2026, the court granted Defendant Richard Chipman’s motion to quash service of summons. In doing so, the court found that Plaintiff failed to meet her burden of establishing by admissible competent evidence that the court may exercise general or specific jurisdiction over Defendant Chipman. Plaintiff contends that, at the time of Plaintiff’s opposition to the motion, Plaintiff was self-represented. Further, Plaintiff had filed an omnibus opposition to multiple motions to quash. After the deadline for Plaintiff to file an opposition to the motion, the court entered a minute order on another motion to quash, admonishing Plaintiff to file separate, distinct oppositions to each motion to quash. Plaintiff is now represented by counsel. Plaintiff contends that in the related case, <i>Adam R. Kidan v. Chartwell Staffing Solutions, Inc.</i>, Orange County Superior Court Case No. 30-2021-01186369 (the “Adan Kidan Action”), the issue of the court’s jurisdiction over Defendant Chipman was also adjudicated on appeal. The court of appeal held that in that related case, there was sufficient evidence to establish that Chipman had purposefully availed himself of the benefits of California in connection with the acquisition and operation of Chartwell Staffing Services, Inc. The court of appeal remanded for additional jurisdictional discovery regarding whether Chipman’s California contacts are sufficiently related to this case to establish specific personal jurisdiction. Procedurally, the mechanisms under which Plaintiff seeks relief are both deficient. First, Plaintiff seeks relief under Code of Civil Procedure section 473 for mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc. § 473(b)). The declaration of Plaintiff Tracy Schneider-Kidan, however, fails to detail any mistake, inadvertence, surprise, or excusable neglect. Plaintiff merely testifies that she recognized that

she could not effectively represent herself, but fails to explain what she believes is the mistake, inadvertence, surprise or excusable neglect for which relief should be granted under section 473(b). Further, Plaintiff failed to include any proposed opposition to the motion to quash. (*Id.*, (“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted...”). To the extent that Plaintiff is seeking relief on the basis that Plaintiff could have filed a different opposition with more facts, Plaintiff fails to meet the burden under section 473 to do so.

Second, Plaintiff seeks relief under Code of Civil Procedure section 1008. “Section 1008 governs reconsideration of court orders whether initiated by a party or the court itself.” (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499). “It is the exclusive means for modifying, amending or revoking an order. That limitation is expressly jurisdictional.” (*Id.*) “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Cal. Civ. Proc. Code § 1008 (a).)

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (*Gilberd, supra*, at p.1499.) Motions for reconsideration are restricted to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Id.*)

Here, Plaintiff fails to offer any admissible, competent, new or different facts that were not previously available and Plaintiff offers no valid reason for not offering it earlier. The court of appeal’s opinion, on which Plaintiff bases her motion, was filed on October 29, 2024—long before the court’s March 18, 2026, order granting Chipman’s motion to quash. The court finds that Plaintiff has not met her burden for the court to modify, amend, or revoke its order under section 1008.

		Third, Plaintiff appears to suggest that the court of appeal opinion in a different, related case, is somehow binding in this case, where the record before the court and the parties are different. “Under the doctrine of the law of the case, a principle or rule that a reviewing court states in an opinion and that is necessary to the reviewing court's decision must be applied throughout all later proceedings <i>in the same case</i>, both in the trial court and on a later appeal.” (<i>People v. Iraheta</i> (2017) 14 Cal.App.5th 1228, 1242 (emphasis added)). “Thus the law-of-the-case doctrine “prevents the parties from seeking appellate reconsideration of an already decided issue <i>in the same case</i> absent some significant change in circumstances.” (<i>Id.</i>) Plaintiff has not offered any authority to establish that an unpublished appellate opinion in another case becomes law of the case in this case. For these reasons, the motion must be denied. The court also notes that multiple upcoming motions are set for August 17, 2026, in this case. The caption pages on the motions still identify N16 as the department in which these motions are being heard. However, as set forth in the April 22, 2026, Minute Order on related cases, all of these motions have been reassigned to Department C27. As such, those motions will be heard in C27. Moving party to give notice.
13	Tennis vs. Comprehensive Manufacturing Services, L.L.C.	TENTATIVE RULING: Plaintiff Jordan Tennis seeks leave to file a first amended complaint that would remove Victory Holdco, LLC as a defendant, add Defendant Amtech Elevator Services (previously Doe 1), and add a cause of action for Strict Products Liability and Products Liability Negligence against Defendant Comprehensive Manufacturing Services, LLC dba Courion. (“CMS”). For the reasons set forth below, the motion is GRANTED. Defendants argue that Plaintiff unreasonably delayed seeking leave to amend. Plaintiff had knowledge of the basis for their new cause of action earlier given that Plaintiff has known that CMS was the seller of elevator parts. Indeed, CMS responded to written discovery, detailing this fact in August 27, 2025, discovery responses. Defendants argue that Defendants will suffer prejudice if the court allows leave to amend because Defendants already have pending motions for summary judgment/summary adjudication and an amended complaint would moot those motions.

Leave to amend should be granted liberally to accomplish substantial justice for both parties. (Code Civ. Proc., § 473, subd. (a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 (“*Hirsa*”).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend....” (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448.) “The power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (*Herrera v. Superior Court* (1984) 158 Cal.App.3d 255, 259.) “Allowing the filing of [] an amendment is in furtherance of justice and in keeping with the fundamental policy of our courts that cases should be decided on their merits.” (*Hirsa, supra*, at p.490.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) “A trial court has broad discretion to allow the filing of amendments to pleadings to conform to proof,” including “after a trial has been concluded” to conform to the proof. (*Nelson v. Gaunt*, 125 Cal. App. 3d 623, 636 (1981)).

Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Here, Plaintiff has substantially complied with the procedural requirements for leave to amend. However, the court is hesitant to excuse Plaintiff’s delays in seeking leave until after Defendants filed motions for summary judgment. Indeed, Plaintiff’s “explanation” for not seeking leave earlier does not appear compelling. The court is also not impervious to the prejudice that Defendants face, particularly given that Defendants have already moved for summary judgment and that Plaintiff’s late-filed motion essentially seeks to moot those

		motions. (See <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal.App.4th 168, 176 (trial court does not abuse its discretion by denying leave to amend when facts were known to plaintiff earlier and because “[i]t would be patently unfair to allow [plaintiff] to defeat [defendant’s] summary judgment motion by allowing them to present a ‘moving target’ unbounded by the pleadings.”). Nevertheless, given the liberal policy of allowing amendments and allowing a party to proceed on the merits, and given that Plaintiff sought leave to amend before the hearing on the motions for summary judgment, the court will grant Plaintiff leave to amend. (See e.g., <i>Laabs v. City of Victorville</i> (2008) 163 Cal.App.4th 1242, 1257 [“[I]f a plaintiff wishes to introduce issues not encompassed in the original pleadings, the plaintiff must seek leave to amend the complaint at or prior to the hearing on the motion for summary judgment.”].) Plaintiff is ordered to file the First Amended Complaint attached as Exhibit #1 to the Declaration of Timothy Peabody Jr. within 7-days of the hearing on this matter. Plaintiff to give notice.
14	Colligan vs. So-Cal Boys Restaurant Group Inc.	TENTATIVE RULING: <u>Motion to Quash</u> Specially Appearing Doe Defendant Kenneth Charles Koch (“Koch”) moves to quash the service of summons on Koch. For the following reasons, the motion is GRANTED. 1) <u>Legal Standard</u> It is common practice to include fictitious names as defendants to allow for flexibility in pleading and service. Once the defendant’s true name has been discovered, however, the complaint “must be amended accordingly.” (Code Civ. Proc. § 474.) Section 474 provides: When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly; provided, that no default or default judgment shall be entered against a defendant so designated, unless it appears that the copy of the summons or

other process, or, if there be no summons or process, the copy of the first pleading or notice served upon such defendant bore on the face thereof a notice stating in substance: "To the person served: You are hereby served in the within action (or proceedings) as (or on behalf of) the person sued under the fictitious name of (designating it)." The certificate or affidavit of service must state the fictitious name under which such defendant was served and the fact that notice of identity was given by endorsement upon the document served as required by this section. The foregoing requirements for entry of a default or default judgment shall be applicable only as to fictitious names designated pursuant to this section and not in the event the plaintiff has sued the defendant by an erroneous name and shall not be applicable to entry of a default or default judgment based upon service, in the manner otherwise provided by law, of an amended pleading, process or notice designating defendant by his true name.

To defeat the amendment, the burden is on defendant to prove plaintiff's earlier awareness of defendant's identity and facts creating its liability. (*See Fara Estates Homeowners Ass'n v. Fara Estates, Ltd.* (9th Cir. 1998) 134 F.3d 377, 377 (applying Calif. law); *Breceda v. Gamsby* (1968) 267 Cal.App.2d 167, 179.)

Where a complaint is amended after the statute of limitations has run to identify a fictitiously-named defendant, and to assert a cause of action against that defendant not included in the original complaint, the amended complaint will be given relation back effect, so as to avoid the statute of limitations, provided:

— the original complaint stated a valid cause of action against the now-identified "Doe" defendant; and

— plaintiff was "genuinely ignorant" of the defendant's identity or the facts rendering defendant liable when the original complaint was filed; and

— the amended complaint, identifying the defendant, is based on the "same general set of facts" as the original and refers to the "same accident and same injuries."

(*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600-601.)

Serving someone as a "Doe" defendant after the statute of limitations has run may seriously impair his or her ability to defend. Hence,

relation back effect will be given only when plaintiff was proceeding in good faith; i.e., only where plaintiff was genuinely ignorant of that person's identity or liability when the action was commenced.

(*Miller v. Thomas* (1981) 121 Cal.App.3d 440, 445-446; *McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-372.)

Note, this is not a "should have discovered" standard, but rather actual knowledge. "(T)he relevant inquiry when the plaintiff seeks to substitute a real defendant for one sued fictitiously is what facts the plaintiff actually knew at the time the original complaint was filed." (*General Motors Corp. v. Sup.Ct. (Jeffrey)* (1996) 48 Cal.App.4th 580, 588.)

If the actual knowledge test (above) is satisfied, it is irrelevant that plaintiff was negligent or failed to exercise reasonable diligence in not having discovered defendant's identity or liability earlier: "(A) plaintiff will not be refused the right to use a Doe pleading even where the plaintiff's lack of actual knowledge is attributable to plaintiff's own negligence." [*Grinnell Fire Protection System Co. v. American Sav. & Loan Ass'n* (1986) 183 Cal.App.3d 352, 359 (emphasis added); see *Fuller v. Tucker* (2000) 84 Cal.App.4th 1163, 1170.]

Similarly, the fact that there were means by which plaintiff could have determined the identity or capacity of a "Doe" defendant when the complaint was filed is irrelevant to whether plaintiff was "ignorant" of these matters. [*Fuller v. Tucker, supra*, 84 CA4th at 1170; *General Motors Corp. v. Sup.Ct. (Jeffrey)* (1996) 48 CA4th 580, 596—"section 474 does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading"].

But, whether plaintiff was genuinely "ignorant" or had "actual knowledge" of the "Doe" defendant's identity or liability when the complaint was filed is determined by a good faith test. (*Woo v. Sup.Ct. (Zarabi)* (1999) 75 Cal.App.4th 169, 177 [genuine ignorance required].)

Further, the court has discretion to deny leave to amend to name a person as a "Doe" defendant where there is evidence of laches—i.e., unreasonable delay by plaintiff in seeking leave to amend *after discovering defendants identity* causing specific prejudice to the defendant. (See *Barrows v. American Motors Corp.* (1983) 144 CA3d 1, 8.) Thus, leave to amend may be denied for unreasonable delay after plaintiff ascertains a "Doe" defendant's identity resulting

in prejudice to the defendant. (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1068—”Doe” amendments filed on eve of trial quashed because plaintiff knew defendants’ identities more than 2 years earlier and it would be difficult for defendants to prepare for trial in such short order.)

2) Procedure

Code Civ. Proc. § 474 does not specify how a “Doe” amendment may be challenged. Assuming plaintiff’s pleadings comply with Section 474, defendant may challenge a “Doe” amendment through various proceedings, depending on whether the challenge involves an improperly-named “Doe” defendant or lack of diligence in serving a fictitiously-named defendant:

(1) Improperly-named “Doe” defendant: When a defendant is improperly named by a fictitious name (e.g., defendant can show plaintiff knew defendant’s name and the facts supporting the cause of action against him or her), the affirmative defense that the statute of limitations had run when defendant was named may raise a fact issue. (*See McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 944-948 (finding triable issue of fact in a medical malpractice action as to whether plaintiff knew of the theory under which defendant could be liable).)

(2) Lack of diligence in serving fictitiously-named defendant: On the other hand, if the defendant is properly named as a “Doe” but claims lack of diligence in serving him or her, a pretrial, evidence based, motion would be the appropriate procedure to challenge plaintiff’s delay in naming the defendant. [*See A.N. v. County of Los Angeles* (2009) 171 CA4th 1058, 1067.]

But other cases have permitted these motions as motions to quash service. (*A.N., a Minor v. Cty. of Los Angeles* (2009) 171 Cal. App. 4th 1058, 1063.) This motion is a motion to quash.

3) Analysis

Plaintiffs named Kenneth Charles Koch (“Koch”) as Doe Defendant 2 on February 26, 2026. (ROA 210.) Koch contends that he may not be added as a Doe Defendant because Plaintiff waited too long to name him as a Doe Defendant, after fact discovery was completed, experts were designated, and expert discovery commenced.

Koch has met his burden to show that Plaintiffs unreasonably delayed in seeking the amendment.

Koch provides evidence that Plaintiffs have known his identity since at least June 17, 2025, when Plaintiffs took Koch's deposition. (Rasmussen Dec., ¶ 9.) Koch also verified Defendant Viking's discovery responses on April 4, 2024. (Rasmussen Dec., Ex. 2.)

In an email exchange in mid-August 2025, Plaintiffs' counsel sent an email to Viking's counsel, asking Viking's counsel if he would accept service on behalf of Koch because he was a "negligent manager/owner." (Rasmussen Reply Dec., Ex. 1.)

On November 12, 2025, the parties submitted a joint stipulation to continue the trial that was then set for December 1, 2025. (ROA 181.) In that stipulation, the parties acknowledged that fact discovery had closed but requested a trial continuance to February 2026. (Ibid.) In early 2026, trial was set for February 23, 2026, but on February 18, 2026, trial was continued to September 21, 2026. (ROA 194; 203.) Plaintiff did not seek to add Koch as a Doe Defendant until February 26, 2026. (ROA 210.)

Plaintiffs claim that, while they were aware of Koch's identity by 2025, they did not have knowledge of Koch's potential personal liability until February 13, 2026, when the parties conducted the deposition of security expert R. Bruce Ramm. (Gansen Dec., ¶ 2 and Ex. A.) However, Ramm is Plaintiffs' own expert. Further, Ramm's deposition testimony attached to Plaintiffs' counsel's declaration does not support Plaintiffs' contention that "Koch failed to perform mandatory credential verification and had knowledge the guards at Roscoe's were not credentialed while choosing to send them to work that night anyway." The deposition testimony provided with the declaration mentions Koch on only one occasion, and that occasion relates to the issue of how the security guards dressed. (Gansen Dec., Ex. A.)

Moving Defendant also shows specific prejudice due to the delay. Discovery is now closed in this action, giving Moving Defendant no opportunity to take part in discovery prior to trial. Plaintiffs contend that Koch cannot claim surprise because he is the owner of Defendant Viking and thus has been "involved" in defense strategy. While that may be true from a corporate perspective, Plaintiffs provide no evidence that Plaintiffs have had any opportunity to conduct discovery with respect to a claim for individual liability against Koch.

Thus, the court grants the motion to quash service of summons on Koch.

		In the conclusion section of his motion, Koch states: In addition, for the reasons articulated above, the Court has the power, sua sponte, in the interests of justice to strike the untimely filings of Doe Amendments 2, 3, 4, 5, 6, 7, 11 and 12. Except for James Frank and Jeff Hayden, whose motions are set for August 26, 2026, these Doe Defendants have not filed their own motion to quash. That is, no party has produced any evidence or argument showing why those Doe Amendments should be quashed. The Court will not sua sponte quash a Doe Amendment at this juncture. Koch shall give notice of this ruling.
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